

Shri Ramchander Straw Products Ltd. v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 7 November 2012 · WRIT - C No. 57073 of 2012 · **Additional security demand stayed pending connected writs, subject to undertaking**

HEADNOTE

On a writ challenging additional security demanded from a pre-payment-meter consumer, a Division Bench connected the petition with a pending batch on the same controversy and, without deciding section 47(5) or the vires of clause 4.20(l) of the U.P. Electricity Supply Code, 2005, stayed the demand dated 4 October 2012 until further orders, subject to an undertaking to furnish the security if the writ failed.

FACTUAL SUMMARY

The petitioner, a supply consumer, opted for a pre-payment meter. The distribution licensee then demanded additional security by communication dated 4 October 2012, invoking section 47(2) of the Electricity Act, 2003. The petitioner challenged that demand as barred by section 47(5), contended that clause 4.20(l) of the U.P. Electricity Supply Code, 2005 was ultra vires that provision, and said security regulations under section 181(2)(v) had not been framed. Identical issues were already pending in connected writs including M/s Supreme Ceramics Limited.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

interim stay of additional security demand

HOLDING

The writ is connected with Civil Misc. Writ Petition No. 51844 of 2009. Until further orders, the respondents shall not demand the additional security mentioned in the communication dated 4 October 2012, provided the petitioner files an undertaking on affidavit before respondent no. 4 within six weeks that the additional security will be furnished if the writ fails. The order is without prejudice to the parties' rights and contentions.

¶ unnumbered

PRINCIPLE TAGS

prepayment-meter-exemption-conditional-on-availability On a writ challenging additional security demanded from a pre-payment-meter consumer, a Division Bench connected the petition with a pending batch on the same controversy and, without deciding section 47(5) or the vires of clause 4.20(l) of the U.P.. ¶ unnumbered

procedural-listing-no-construction On a writ challenging additional security demanded from a pre-payment-meter consumer, a Division Bench connected the petition with a pending batch on the same controversy and, without deciding section 47(5) or the vires of clause 4.20(l) of the U.P.. ¶ unnumbered

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ADDITIONAL SECURITY UNDER SECTION 47(2) MAY BE DEMANDED FROM A CONSUMER WHO HAS OPTED FOR A PRE-PAYMENT METER, HAVING REGARD TO SECTION 47(5)

Raised; not decided. Interim stay only, without prejudice. ¶ unnumbered

NOT DECIDED — WHETHER CLAUSE 4.20(L) OF THE U.P. ELECTRICITY SUPPLY CODE, 2005 IS ULTRA VIRES SECTION 47(5)

¶ unnumbered

NOT DECIDED — WHETHER REGULATIONS ON SECURITY UNDER SECTION 181(2)(V) HAVE BEEN FRAMED AND WHETHER THEIR ABSENCE AFFECTS THE DEMAND

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A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.